



File No.: EXP202210454

RESOLUTION No.: R/00122/2023

Considering the complaint filed on August 19, 2022, with this Agency by A.A.A. (hereinafter the complainant) against B.B.B. (hereinafter the respondent) for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF ***NIF.1, and their request, as stated by the complainant, did not receive the legally established response. The complainant states that the request was directed to the owner of the psychological office that their minor daughters attended from October 2021 to May 2022.

Along with the complaint, copies of the requests made are submitted, as well as a copy of the response provided on August 16, 2022, in which they indicate that they refuse to provide a copy of the psychological assessments conducted on the minors, understanding that the complainant's right of access has been violated.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

The respondent states that they cannot provide a copy of the psychological assessments conducted on the complainant's two minor daughters since, after consulting the deontological commission and the legal advisor of COPCYL (Official College of Psychologists of Castilla y León), they have confirmed that it is not possible to provide those assessments as they are subject to copyright and they do not have the authorization to do so. The respondent indicates that they can show the assessments without any problems. They also inform that all documentation they could provide to the complainant has been given, except for those assessments.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied.

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As a consequence, on November 19, 2022, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the said admission agreement, will be six months.

The aforementioned agreement granted the entity being complained about the opportunity to present its arguments, so that within ten working days it could submit any allegations it deemed appropriate.

This entity summarized its allegations as follows:

"...In relation to the last request from the agency in which we are told, 'You do not provide information or documentation that proves that the psychological tests conducted are subject to copyright, which suggests a possible violation of the right of access,' we attach a document showing the copyright of the test administered to the minor (document 1).

The results of the administered test are already in the possession of the complainant (we attach the latest report). Our obligation is solely to provide her with the results, results that we reiterate she already has (...) The test that the complainant demands from us can be destroyed; we are not obliged to retain that information, only the results obtained, which we emphasize she already has in her possession. The analogy of what the complainant is asking us would be as if, when we go to collect the results of a blood test, we also request the sample that was taken from us..."

FOURTH: Having examined the allegations presented by the entity being complained about, they are to be communicated to the complainant, so that, within fifteen working days, she may formulate any allegations she considers appropriate.

The complainant begins by asserting that psychological data is medical data and therefore subject to the right of access.

She continues by stating: "...the psychologist does not possess any copyright or authorship rights over the tests, as the authorship of the same belongs to HARCOURT ASSESSMENT, San Antonio, TX, USA, a right that could affect, in any case, the blank tests (which is not what the interested party is requesting), but not the tests that contain the results obtained from the application of such tests, which are personal data..."

The complainant lists the tests conducted on the minor to emphasize that she has only been provided with the assessment and not the copy of the tests conducted, their results, and the scores obtained.

The complainant concludes by discussing malpractice and errors in the information provided.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the Law.

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested

party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

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THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to what is established in Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of data.

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personal data in question, the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, that is, the right of access shall be granted in such a way that it does not affect third-party data.

In the case analyzed here, the claimant exercised their right of access to tests of their minor daughters, and the respondent denied it, considering that they could not provide the tests as they were intellectual property.

As a result of this claim in the submissions presented, the respondent has provided documentation regarding the copyright of the tests and confirms that the evaluations of the same have been delivered to the claimant.

Now we are faced with the issue that the controversial matter is not access, as they do not deny that the interested party can see the tests, but the modality of access (the copy) citing copyright.

The right of access regulated in Article 15 of the GDPR includes confirmation of whether data is being processed, access to such data, if they are processed, and information on the processing. Regarding access to personal data, it implies access to the actual data, not to the category of processed data.

To provide access, Article 15.3 of the GDPR refers to the modalities for proceeding with access.

Therefore, the copy is a modality for accessing the data, not an additional right of the data subject.

Thus, Article 15.4 of the GDPR states that the right to obtain a copy mentioned in paragraph 3 of Article 15 shall not adversely affect the rights and freedoms of others. Therefore, to consider the right of access fulfilled, the delivery of a copy of the personal data is not imperative, as it is necessary to weigh the rights at stake, since the delivery of a copy cannot negatively affect the rights and freedoms of others. In the specific case now examined and regarding the requested right of access, weighing the claimant's right to receive a copy of the requested tests and the copyright claimed by the respondent, it is possible to accommodate one without undermining the other, limiting the delivery of the copy. To this end, access can be granted to the interested party through the modality of exhibition. And, all of this considering that the respondent would have to effectively prove to us that the tests conducted are subject to copyright, as has indeed occurred in the submission of allegations, and how it would affect or what it would affect.

Based on the foregoing, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the claim that originated this procedure, as the right of access was not fully carried out.

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Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to instruct B.B.B. with NIF ***NIF.1, to, within ten working days following the notification of this resolution, send to the claimant a certification addressing the requested right of access or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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